

ACCIDENT REPORT

K-WC 1101-A (Rev. 10-13)

– SEE INSTRUCTIONS ON PAGE 2 –

There is a \$250 penalty for repeated failure to file accident reports within 28 days of the date the employer is informed of the accident. **Submission does not constitute admission of liability.**

Send this completed form to your insurer, third party administrator or pool association for submission electronically to the Division of Workers Compensation.

Direct questions or comments to:
Toll free (800) 332-0353

OSHA Case or File Number _____

1. Federal Employer's Identification Number93-1456789Date of hire2019-03-18

2. Name of employerPacific Home Goods, Inc.Phone (503) 555-0142

3. Mailing address1245 NE Riverside Way, Portland, OR, 97211

4. Location, if different from mailing address1245 NE Riverside Way, Portland, OR, 97211

5. Nature of businessHome goods retailNAICS or S.I.C. Code442299Dept. or divisionWarehouse - Receiving

6. Name of employeeEmily Anne JohnsonAge34SexFemale

7. Home address418 E 29th St, Vancouver, WA, 98661

8. SSN987-65-4321Birth date1990-06-14Employee's occupationWarehouse associateHome phone(360) 555-0198

9. Date of injury or occupational disease2024-09-10Time of injury10:15:00 a.m. / p.m.

Date reported to employer2024-09-10Date disability began2024-09-11Gross average weekly wage\$1225.50

10. Place of accident or last exposurePortland, Multnomah, OR

11. Was accident or last exposure on employer's premises?☒ YES☐ NO

12. How did accident occur?While unloading a pallet from a delivery truck at the warehouse loading dock, a top carton shifted and fell. Emily stepped back to avoid it, tripped over a parked pallet jack, twisting her right ankle and landing on her left wrist.

13. What was employee doing when injured?Unloading inbound shipment and moving cartons from pallet to staging area.

14. Name substance or object that directly caused injury*Falling carton and pallet jack

15. Describe in detail nature and extent of injury, indicate part of body involved*Right ankle inversion sprain (Grade II) with swelling; left wrist contusion/sprain. X-rays negative for fracture. Treated with aircast, wrist brace, NSAIDs, and referred to physical therapy.

16. Was worker admitted to hospital?☐ YES☒ NODateTreated by emergency room only?☒ YES☐ NO

Hospital name and addressLegacy Emanuel Medical Center, 2801 N Gantenbein Ave, Portland, OR 97227

17. Name and address of attending physician or clinicDr. Samuel Ortiz,

Northwest Occupational Medicine Clinic, 1331 N Killingsworth St, Portland, OR 97217

18. Has employee returned to regular duty?☐ YES☒ NOLight duty?☒ YES☐ NODate2024-09-16

19. Is compensation now being paid?☒ YES☐ NODate first/initial payment2024-09-20

20. Weekly compensation rate\$817.00Is further medical aid needed?☒ YES☐ NO☐ UNKNOWN

21. Did employee die?☐ YES☒ NOIf YES, give date of death(File amended report within 28 days if death subsequently occurs.)

22. Name(s) and address(es) of dependents (death cases only)

23. Insurance carrier and third party administratorAcme Mutual Insurance Co. / Apex TPA Services

Address500 Market St, Suite 900, San Francisco, CA, 94105Phone(800) 555-3478

Policy numberPOL987654321Name of agentMichael Santos

Claim numberCLM-2024-0910-001Name of claim representativeLaura Chen

24. Date of report2024-09-12Completed byKaren PatelTitleHR Manager

FOR OFFICE USE

COUNTY

CAUSE

NATURE

SEVERITY

0 - NO TIME LOST

1 - TIME LOST

2 - MEDICAL

3 - FATAL

SOURCE

MEMBER

Instructions

You must answer every question; failure to answer all questions may cause the report to be returned to the employer. Returned accident reports may cause a delay of benefits to the injured employees and could subject the employer to fines.

The employer must send this accident report to its insurance carrier, third party administrator or pool association for electronic submission to the Kansas Department of Labor Division of Workers Compensation.

*Instructions for Questions 14 and 15

- 14: Name the object or substance which directly injured the employee. Example: machine or object employee struck or struck employee; vapor or poison employee inhaled or swallowed; chemicals or radiation which irritated employee's skin; if hernia, the object employee was lifting or pulling; etc.
- 15: Be as specific as possible indicating all that is known about the injury. Name the part of body injured.

Definition of an Incapacitating Injury

The Workers' Compensation Act sets forth a strict time frame for filing accident reports with the division. The controlling statute is K.S.A. 44-557(a), which reads as follows:

(a) it is hereby made the duty of every employer to make or cause to be made a report to the director of any accident, or claimed or alleged accident, to any employee which occurs in the course of the employee's employment and of which the employer or the employer's supervisor has knowledge, which report shall be made upon a form to be prepared by the director, within 28 days, after the receipt of such knowledge, if the personal injuries which are sustained by such accidents are sufficient wholly or partially to incapacitate the person injured from labor or service for more than the remainder of the day, shift or turn on which such injuries were sustained.

Accident reports are not required for every work-related injury. The statute requires a report to be filed when the worker's whole or partial incapacity continues beyond the "day, turn, or shift which such injuries are sustained" as the result of accident. "Incapacity" is not specifically defined within the law, but the division believes that the Legislature's intent was to reference a worker's whole or partial loss of the ability to perform his or her ordinary job tasks. When in doubt, keep in mind the law contains no penalty for filing a report that ultimately proves to be unnecessary. **There are penalties, however, for failing to file a report when one was required.** The penalties include fines and limitations on the defenses the employer may assert if a claim is filed.

OSHA Recordkeeping

The employer must complete an Injury and Illness Incident Report, OSHA Form 301, within seven (7) days of learning that a work-related injury or illness has occurred. According to OSHA's recordkeeping rule, you must keep Form 301, or an equivalent substitute on file for five (5) years.

To learn more about OSHA's recordkeeping requirements and download forms, visit:
www.osha.gov/recordkeeping/RKforms.html